

OPERATING AGREEMENT OF SNOWSERV LLC

A New York Single-Member Limited Liability Company

How to use: Fill in every [BRACKETED] field, then sign and date the last page. Keep this with your business records. It is **not filed with New York State**. This template is not legal advice; have a New York attorney review it before you rely on it.

This Operating Agreement (this "**Agreement**") of **SnowServ LLC** (the "**Company**") is entered into and effective as of [EFFECTIVE DATE], by [MEMBER FULL LEGAL NAME] (the "**Member**"), the sole member of the Company.

Article 1 — Formation

1.1 Formation. The Company was formed as a limited liability company under the New York Limited Liability Company Law (the "**Act**") by the filing of Articles of Organization with the New York Department of State on [DATE ARTICLES FILED]. This Agreement is adopted by the Member pursuant to §417 of the Act.

1.2 Name. The name of the Company is **SnowServ LLC**. The Company may also do business under any assumed name properly registered under applicable law (including "**SnowServ**").

1.3 Principal Office. The principal office of the Company is [PRINCIPAL OFFICE ADDRESS], or such other place as the Member may designate.

1.4 Registered Agent for Service of Process. The Secretary of State of New York is designated as the Company's agent for service of process. The address to which the Secretary of State shall forward process is [ADDRESS FOR PROCESS].

1.5 Term. The Company began on the date its Articles of Organization were filed and shall continue perpetually unless dissolved under Article 8.

1.6 Purpose. The Company is formed to engage in the business of providing an on-demand snow-removal marketplace and related technology and services, and to engage in any and all lawful business for which a limited liability company may be organized under the Act.

Article 2 — The Member

2.1 Sole Member. The Member is the sole member of the Company and owns a **100% membership interest**. The Member's name and address are: **[MEMBER FULL LEGAL NAME]**, **[MEMBER ADDRESS]**.

2.2 Limited Liability. The Member is not personally liable for any debts, obligations, or liabilities of the Company, whether arising in contract, tort, or otherwise, solely by reason of being a member, except as expressly required by the Act. The Company's debts and obligations are solely those of the Company.

Article 3 — Management

3.1 Member-Managed. The Company is managed by its Member, who has full and exclusive authority to manage and control the business and affairs of the Company and to make all decisions regarding it.

3.2 Authority. The Member may, on behalf of the Company: open and operate bank and merchant accounts (including Stripe); enter into, perform, and terminate contracts; hire and engage employees and independent contractors; acquire, hold, and dispose of property; borrow money and grant security; and take any other action the Member deems necessary or advisable.

3.3 Officers (Optional). The Member may appoint and remove officers and delegate duties to them; any such appointment does not diminish the Member's authority.

Article 4 — Capital

4.1 Initial Capital Contribution. The Member has contributed or shall contribute to the Company the following as its initial capital contribution: **[\$ AMOUNT / DESCRIPTION, e.g., "\$500 in cash"]**.

4.2 Additional Contributions. The Member is not obligated to make additional capital contributions but may do so at any time in the Member's discretion.

4.3 Capital Account; No Interest. The Company shall maintain a capital account for the Member. No interest shall accrue on any capital contribution.

Article 5 — Distributions, Profits & Losses

5.1 Allocation. All profits and losses of the Company are allocated entirely to the Member.

5.2 Distributions. Distributions of cash or other assets shall be made to the Member at such times and in such amounts as the Member determines, subject to the Act (no

distribution may be made if it would render the Company unable to pay its debts as they come due or make its liabilities exceed its assets).

Article 6 — Tax Matters

6.1 Tax Classification. As a single-member limited liability company, the Company is by default disregarded as an entity separate from its Member for U.S. federal income tax purposes, and its income and expenses are reported on the Member's individual return. The Member reserves the right to elect for the Company to be taxed as a corporation (including an S-corporation) by filing the appropriate election with the IRS.

6.2 Fiscal Year. The Company's fiscal year is the calendar year unless the Member selects otherwise as permitted by law.

6.3 EIN. The Company shall obtain and use a federal Employer Identification Number (EIN): **[EIN, once obtained]**.

Article 7 — Books, Records & Banking

7.1 Records. The Company shall keep complete and accurate books and records at its principal office, including this Agreement, the Articles of Organization, and financial records.

7.2 Separateness. The Company shall maintain its own bank and financial accounts, separate from the Member's personal accounts, and the Member shall not commingle Company funds with personal funds. The Member shall observe LLC formalities so as to preserve the Company's separate legal existence and the limited liability afforded by the Act.

Article 8 — Transfer, Dissolution & Winding Up

8.1 Transfer of Interest. The Member may sell, assign, or transfer all or any part of the Member's membership interest, including to a holding company or other entity the Member controls. A transferee of the entire interest is admitted as a member upon the Member's written consent.

8.2 Dissolution. The Company shall be dissolved upon: (a) the written election of the Member; (b) entry of a decree of judicial dissolution under the Act; or (c) any event that makes it unlawful for the Company's business to be continued.

8.3 Winding Up. On dissolution, the Company's affairs shall be wound up, its assets liquidated, and the proceeds applied first to creditors (including the Member as a creditor), then to the Member.

Article 9 — Indemnification

To the fullest extent permitted by the Act, the Company shall indemnify and hold harmless the Member (and any officer, employee, or agent) against any loss, liability, or expense (including reasonable attorneys' fees) arising from any act or omission performed in good faith on behalf of the Company, except for acts of fraud, willful misconduct, or knowing violation of law.

Article 10 — Miscellaneous

10.1 Governing Law. This Agreement is governed by the laws of the State of New York, without regard to conflict-of-laws principles.

10.2 Amendment. This Agreement may be amended only by a written instrument signed by the Member.

10.3 Severability. If any provision is held invalid or unenforceable, the remaining provisions remain in full force and effect.

10.4 Entire Agreement. This Agreement is the entire agreement of the Member with respect to the Company and supersedes all prior understandings.

10.5 Binding Effect. This Agreement binds and benefits the Member and the Member's heirs, successors, and permitted assigns.

Signature

IN WITNESS WHEREOF, the undersigned, being the sole Member of SnowServ LLC, has executed and adopted this Operating Agreement as of the Effective Date.

MEMBER:

Signature: _____

Print Name: [MEMBER FULL LEGAL NAME]

Date: [DATE SIGNED]

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